

Section 2.

SCHEDULE.**PART I.****PRINCIPLES ON WHICH THE BOARD OF ARBITRATION HAS HITHERTO ACTED.**

The payment or compensation to be awarded for the use of a ship, or vessel, or cargo space, or passenger accommodation therein, and for services rendered shall be based on the rates and conditions contained in the Blue Book reports, or in cases of a class where those rates and conditions have not been applied on some other liberal estimate of the profits which the owner could have made if there had been no war, and shall be assessed without taking into account any increase of market values of tonnage or of rates of hire due to the war, together with, in cases where damage to or loss of the ship or vessel directly due to such use has occurred, a sum by way of compensation in respect of such loss or damage, so, however, that nothing shall be awarded for any other damage or loss incidentally caused to the owner or to other persons.

For the purposes of this Part of this Schedule, the expression "Blue Book reports" means the reports as to rates and conditions published in October, nineteen hundred and fourteen, by the sub-committee of the Board of Arbitration, subject to such increases or modifications thereof as may have been agreed to before the first day of January, nineteen hundred and twenty.

PART II.**PRINCIPLES ON WHICH THE DEFENCE OF THE REALM LOSSES COMMISSION HAS HITHERTO ACTED.**

The Compensation to be awarded shall be assessed by taking into account only the direct loss and damage suffered by the claimant by reason of direct and particular interference with his property or business, and nothing shall be included in respect of any loss or damage due to or arising through the enforcement of any order or regulation of general or local application, or in respect of any loss or damage due simply and solely to the existence of a state of war, or to the general conditions prevailing in the locality, or to action taken upon grounds arising out of the conduct of the claimant himself rendering it necessary for public security that his legal rights should be infringed, or in respect of loss of mere pleasure or amenity.

CHAPTER 49.

An Act to promote the Welfare of Blind Persons.

[16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Every blind person who has attained the age of fifty shall be entitled to receive and to continue to receive such pension as, under the Old Age Pensions Acts, 1908 to 1919, he would be entitled to receive if he had attained the age of seventy, and the provisions of those Acts (including the provisions as to expenses, but excluding the provisions of subsection (2) of section ten of the Old Age Pensions Act, 1908, relating to the giving of notices by registrars of births and deaths) shall apply in all respects to such persons as if for the first statutory condition there were substituted a condition that the person must have attained the age of fifty, and be so blind as to be unable to perform any work for which eyesight is essential, and as if for references to "seventy" and "fifty" there were respectively substituted references to "fifty" and "thirty."

Pensions
for blind
persons
over 50.

8 Edw. 7
c. 40.

2.—(1) It shall be the duty of the council of every county and every county borough, whether in combination with any other council or councils or otherwise, to make arrangements to the satisfaction of the Minister of Health for promoting the welfare of blind persons ordinarily resident within their area, and such council may for this purpose provide and maintain or contribute towards the provision and maintenance of workshops, hostels, homes, or other places for the reception of blind persons whether within or without their area and, with the approval of the Minister of Health, do such other things as may appear to them desirable for the purpose aforesaid. The Council shall, within twelve months after the passing of this Act, prepare and submit to the Minister of Health a scheme for the exercise of their powers under this section.

Power of
local
authorities
to promote
welfare of
blind
persons.

(2) The expenses incurred by a council under this section shall be defrayed in the case of a county council out of the county fund as expenses for general county purposes and in the case of a county borough council out of the borough fund or borough rate.

(3) A council may borrow for the purposes of this section in the case of a county council in accordance with the Local Government Act, 1888, and in the case of a county borough council, in accordance with the Public Health Acts, 1875 to 1908, but the money so borrowed by the council of a county borough shall be borrowed on the security of the borough fund or borough rate, and money borrowed for the purposes of this section shall not be reckoned as part of the debt of the council for the purposes of any provision limiting the powers of borrowing by the council.

51 & 52 Vict.
c. 41.

(4) A council may exercise any of the powers conferred by this section (other than the power of raising a rate or of borrowing money) through a committee of the council, and may appoint as members of the committee persons specially qualified by training or experience in matters relating to the blind who are not members of the council, but not less than

two-thirds of the members of every such committee shall consist of members of the council, and a committee established under this section may, subject to any direction of the council, appoint such and so many sub-committees consisting either or partly of members of the committee, as the committee thinks fit.

(5) This section shall apply to the City of London as if it were a county borough and the common council were the council of a county borough, and any expenses of the common council under this section shall be defrayed out of the general rate.

56 & 57 Vict.
c. 42.

(6) Nothing in this section shall affect the powers and duties of local education authorities under the Elementary Education (Blind and Deaf Children) Act, 1893, or the Education Acts, 1870 to 1919, and local education authorities in the exercise of their duty to contribute to the establishment of a national system of public education available for all persons capable of profiting thereby shall make or otherwise secure adequate and suitable provision for the technical education of blind persons ordinarily resident in their area who are capable of receiving and being benefited by such education.

(7) For the purposes of this section, a blind person who becomes an inmate of an institution for the blind after the commencement of this Act shall be deemed to continue to be ordinarily resident in the area in which he was ordinarily resident before he became an inmate of such institution.

Charities for
the blind.
6 & 7 Geo. 5.
c. 43.

3.—(1) The War Charities Act, 1916, shall apply to charities for the blind as if it were herein re-enacted and in terms made applicable to such charities, subject, however, to the following modifications:—

- (a) The registration authority shall, as respects the City of London, be the common council of the City of London, and elsewhere the county council or county borough council;
- (b) Notwithstanding anything in subsection (3) of section two of the Act, the registration authority may refuse to register a charity if they are satisfied that its objects are adequately attained by a charity registered under the Act;
- (c) Notwithstanding anything in section four of the Act, the fee payable on registration of a charity may exceed ten shillings, but shall not exceed two guineas;
- (d) Regulations made by the Charity Commissioners under section four of the Act shall be subject to the approval of the Minister of Health instead of a Secretary of State;
- (e) Where a charity is removed from the register, the Charity Commissioners may exercise, in relation to the charity, any powers which they are authorised by section six of the Act to exercise in relation to charities registered under the Act for the purposes of an appeal thereunder; and

- (f) Where any of the conditions mentioned in section three of the Act are not complied with in respect of any registered charity, any person who, by regulations made under section four of the Act, may be made responsible for the observance of those conditions shall be guilty of an offence against the Act.

(2) Regulations may be made by the Charity Commissioners subject to the approval of the Minister of Health for providing that in the case of any charities for the blind which have, before the passing of this Act, been registered under the War Charities Act, 1916, the registration under that Act shall have effect as registration by the appropriate registration authority under this Act and for making such consequential provisions as may be necessary for that purpose. 6 & 7 Geo. 5.
c. 43.

(3) In this section "charity for the blind" means any fund, institution, or association (whether established before or after the commencement of this Act) having or professing to have for its object or for one of its objects the provision of assistance in any form to blind persons or any other charitable purpose relating to blind persons, but shall not include any fund, institution, or association where any such object as aforesaid is subsidiary only to the principal purposes of the charity.

4.—(1) This Act shall apply to Scotland subject to the following modifications :— Application
to Scotland
and Ireland.

- (a) Subsections (2) and (3) of section 2 and paragraphs (d) and (e) of subsection (1) of section 3 shall not apply;

- (b) The following subsection shall be substituted for subsection (6) of section 2—

(6) Education Authorities under the Education (Scotland) Act, 1918, shall make or otherwise secure adequate and suitable provision for the technical education of blind persons ordinarily resident in their areas who are capable of receiving and being benefited by such education. 8 & 9 Geo. 5.
c. 48.

- (c) The expression "county borough" has the meaning assigned thereto in section one hundred and thirty-two of the Children Act, 1908, and the provisions of subsection (21) of that section so far as applicable to county and town councils shall apply for the purposes of this Act with the substitution of references to this Act for references to the Children Act, 1908, or any section thereof; 8 Edw. 7.
c. 67.

- (d) References to the Minister of Health and to the Charity Commissioners shall be construed as references to the Scottish Board of Health.

(2) This Act shall apply to Ireland subject to the following modifications :—

- (a) References to the Minister of Health shall be construed as references to the Local Government Board for Ireland;

- (b) The expenses incurred by a council under this Act shall be defrayed out of the poor rate, and in the case of a county council shall be raised as a county at large charge, and a council may borrow for the purposes of this Act under Article 22 of the Schedule to the Local Government (Application of Enactments) Order, 1898.

Short title
and com-
mencement.

5. This Act may be cited as the Blind Persons Act, 1920, and shall come into operation on the tenth day of September, nineteen hundred and twenty.

CHAPTER 50.

An Act to provide for the better administration of mines, and to regulate the coal industry, and for other purposes connected with the mining industry and the persons employed therein. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

ADMINISTRATION OF MINING INDUSTRY.

Establish-
ment of Mines
Department
of Board of
Trade.

1. For the purpose of securing the most effective development and utilisation of the mineral resources of the United Kingdom and the safety and welfare of those engaged in the mining industry, there shall be established a department of the Board of Trade (to be known as the Mines Department) under a Parliamentary Secretary of the Board (in this Act referred to as "the Secretary for Mines"), and all powers and duties of the Board of Trade in relation to mines and the mining industry, whether under this Act or otherwise, shall, subject to the directions of the Board of Trade, be exercised and performed through the Secretary for Mines.

General
powers and
duties.

2.—(1) It shall be the duty of the Board of Trade, in the exercise and performance of their powers and duties in relation to mines and the mining industry, to take steps to carry out the purposes aforesaid, and there shall, as from such date or dates as His Majesty in Council may determine, be transferred to the Board of Trade all the powers of a Secretary of State under enactments relating to mines and quarries.

(2) If in regard to any other powers and duties of any Government department relating to mines, quarries, or minerals or the mining industry or the persons engaged therein, whether conferred by statute or otherwise, it is deemed expedient that such powers and duties should be transferred to the Board of Trade, or be exercised or performed by the Board of Trade